

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Murdy	Team: Squad #06	CCRB Case #: 201411816	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 11/21/2014 1:10 PM	Location of Incident: West 116th Street and 7th Avenue	18 Mo. SOL 5/21/2016	Precinct: 28
Date/Time CV Reported Fri, 11/21/2014 2:03 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/21/2014 2:03 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Jaeger	29772	950622	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Jaeger	Discourtesy: PO Christopher Jaeger acted discourteously toward § 87(2)(b)	A . Unsubstantiated

Case Summary

On November 21, 2014, § 87(2)(b) filed this complaint by phone with the CCRB.

On November 21, 2014, § 87(2)(b) was pulled over by PO Christopher Jaeger for failing to yield to pedestrians at the intersection of 7th Avenue and West 116th Street in Manhattan. After taking her license and registration, and returning to his car to write a summons, PO Jaeger returned to § 87(2)(b) and threw the summons at § 87(2)(b)'s chest (**Allegation A**) (encl. 3d).

On March 2, 2015, this case was reassigned to the undersigned investigator from Investigator Esther Chi-Hsin Hsia upon her departure from the agency.

Mediation, Civil, and Criminal Histories

On November 21, 2014, § 87(2)(b) accepted mediation (encl. 6a). However, on January 26, 2015, the case was rejected for mediation and sent back for investigation (encl. 6a). On April 9, 2015, an inquiry was filed with the NYC Comptroller's Office to check if a notice of claim was filed (encl. 8n). A response is pending. § 87(2)(b) [§§ 86(1)(3)&(4), § 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (encl. 1b).
- This is PO Jaeger's first CCRB complaint (encl. 1a).

Allegations and Recommendations

Allegation A – Discourtesy: PO Christopher Jaeger acted discourteously towards § 87(2)(b)

§ 87(2)(b) alleged that when PO Jaeger approached her car with the summons in hand, he told her that it was for almost hitting pedestrians in the crosswalk, and then tossed the summons at her chest (encl. 3d).

In his CCRB interview, PO Jaeger denied throwing the summons at § 87(2)(b) and claimed he handed it directly to her. At the conclusion of the interview, PO Jaeger mentioned he recently completed the traffic court hearing for § 87(2)(b)'s summons and during the proceedings, she agreed that PO Jaeger handed her the summons (encl. 4g).

A copy of the recording was subpoenaed from the New York State Department of Motor Vehicles (encl. 8l). On the recording, PO Jaeger can be heard testifying that he handed § 87(2)(b) the summons. In her counter testimony, § 87(2)(b) does not mention how the summons was given to her and only focuses on trying to dispute the summons' validity § 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegation A** be closed as *unsubstantiated*.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date